IN THE DISTRICT COURT AT LA HELD ON THURSDAY THE 11TH DAY OF SEPTEMBER, 2025 BEFORE HER WORSHIP ADWOA BENASO ASUMADU-SAKYI SITTING AS MAGISTRATE

SUIT NO: A2/15/25

DANIEL AYOSILA

OF LA, ACCRA .... PLAINTIFF

VRS.

MR. OSEI

OFSAKUMONO .... DEFENDANT

PARTIES:

Plaintiff present

Defendant present

JUDGMENT

The Plaintiff commenced the instant suit on the 12th of December, 2024 against the Defendant and prayed for the following reliefs:

a. An order from this Honourable court to compel Defendant to give the Container Plaintiff paid for or refund the amount of GH¢25,000.00 he paid for the purchasing of the container.

b. An order for interest to be calculated at the current bank rate from December, 2023 to date of final payment.

c. Cost

d. Any further order(s) as the court may deem fit.

The Writ of summons and hearing notice was served through substituted service on the 27th of January, 2025 and on the 18th of February, 2025 the court dispensed with the filing of written statements and ordered the parties to file their witness statements.

The Plaintiff complied with this order and filed his witness statement on the 14th of April, 2025 and the Defendant filed his witness statement on the 14th of March, 2025. The Plaintiff opened his case on the 14th of August and he closed his case on the same day. The Defendant then entered into the witness box and closed his day on the same day. The case was then adjourned to the 11th of September, 2025 for judgment.

PLAINTIFF'S CASE

The Plaintiff's case as contained in his witness statement as his evidence in chief states that sometime in November 2023, he saw the Defendant's metal container at Sakumono traffic light which he was offering for sale. He then informed the Defendant that he was interested in purchasing the container for his mother to use for business purposes and after discussions both parties agreed to pay an amount of Thirty Thousand Five Hundred Ghana Cedis (GH¢ 30,500.00) which he would pay in installments.

Plaintiff made three installments between November and December 2023 totaling Twenty Five Thousand Ghana Cedis (GH¢ 25,000.00) which brought the outstanding balance to Five Thousand Five Hundred Ghana Cedis (GH¢ 5,500.00). He tendered into evidence copies Exhibit A which are copies of the receipts of payments he made. That in

January, 2025 he was finally ready to pay the outstanding balance of GH¢ 5,500.00 and take possession of the container; the Defendant rejected the payment and asked him to hold on. Defendant then informed him that he had divided the container into two parts and had rented out one portion and that Plaintiff could only take full possession in the year 2026.

Plaintiff who considered this new information as a breach of their earlier agreement lodged a complaint against the Defendant at the Sakumono Police Station. Defendant was then invited to the police station and he offered to refund the GH¢ 25,000.00 he had already paid by the 15th December, 2024 but he failed to honor that promise.

That on the 19th of March, 2025 he was informed that the Defendant had paid an amount of Twenty Four Thousand Five Hundred Ghana Cedis (GH¢ 24,500.00) by the police and this left an outstanding balance of Five Hundred Ghana Cedis (GH¢ 500.00) and that all efforts to get the Defendant to pay the outstanding balance have proved futile. Plaintiff states that he had suffered inconvenience, financial loss and undue stress as a result of the Defendant's conduct and prays the court to grant his reliefs.

DEFENDANT'S CASE

The Defendant's case as contained in his witness statement as his evidence in chief states that sometime in 2023 he entered into a sales agreement of his container for the price of Thirty Thousand Five Hundred Ghana Cedis (GH¢ 30,500.00) on installment. The Plaintiff made an initial payment of Twenty Five Thousand Ghana Cedis (GH¢ 25,000.00) and this left an outstanding amount of Five Thousand Five Hundred Ghana Cedis (GH¢ 5,500.00) to be paid. That the parties agreed that after the initial payment the Plaintiff could take possession of the container but before that could be done there was a rainstorm which took off the roofing sheet of the container.

Defendant then called Plaintiff to inform him and asked him to come and fix the roofing sheet so he could occupy same but he refused to do so. Defendant then had to resort to

looking for money to fix the roof since the Plaintiff refused to do same. That after fixing the roof he decided to divide the container into two portions and rented one portion and when the Plaintiff found out he lodged a complaint at the police station and he was invited.

Defendant honoured the invitation and it was agreed that he would refund the money Plaintiff had paid to him. Defendant goes on to state that he has refunded an amount of GH¢ 25,000 to the police and this are known to the Plaintiff. He finally states that the Plaintiff is not entitled to his reliefs.

DISCUSSION OF THE LAW

It is a time honoured principle of the Law of Evidence, that a Plaintiff in a civil suit must, in line with the provisions of **Sections 10 and 11 of the Evidence Act, 1975 (NRCD 323)** produce in Court, the requisite evidence on a balance of probabilities, to avoid a ruling being made against him. This legal principle has been emphasized in a series of cases notable the case of **Ackah v. Pergah Transport [2010] SCGLR 728** where Adinyirah JSC stated the position as follows:

> "It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is carried and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing evidence so that on all the evidence a reasonable mind could

> conclude that the existence of the fact is more probable than its non-existence. This is a requirement of the law on evidence under sections 10(1) and (2) and 11(1) and (4) of the Evidence Act, 1975 (NRCD 323),"

See the cases of Ababio v. Akwasi IV [1994-1995] GBR 774, Zambrama v. Sebgedzi [1992] 2 GLR 221 CA, In Re Ashalley Botwe Lands; Adjetey Agbosu and Others Kotey and Others [2003-2004] SCGLR 420.

It follows therefore that this being a civil claim; the Plaintiff shoulders the burden to prove his claim on a balance of probabilities. By Section 14 of NRCD 323 this burden will not shift unless he first succeeded this burden in the light of the evidence led.
This position of the law has been reiterated in the case of **Majolagbe v. Larbi and Others [1959] GLR 190-195**, the learned trial judge, Ollennu J (as he then was) stated as follows:

> "Proof in law is the establishment of facts by proper legal means.
> Where a party makes an averment capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instance or circumstances, and his averment is denied he does not prove it by merely going into the witness box repeating that averment on oath or having it repeated on oath by his witness(es). He proves it by producing other evidence of facts and circumstances, from which the court can be satisfied that what he avers is true."

EVALUATION OF THE EVIDENCE

The duty of this Court therefore is to determine whether or not the Plaintiff has succeeded this burden in the light of the evidence led.

It is settled law that he who alleges must prove his case on the strength of his own case. This principle was enunciated in the case of **Owusu v. Tabiri and Another [1987-88] 1 GLRR** as follows:

> "It was a trite principle of law that who asserted must prove and win his case on the strength of his own case and not the weakness of the defence".

From the testimony adduced by both parties it is not in contention that there was an agreement for the purchase of the Defendant's container at a price of Thirty Thousand Five Hundred Ghana Cedis (GH¢ 30,500.00) and that the Plaintiff made an initial payment of Twenty Five Thousand Ghana Cedis (GH¢ 25,000.00). This admission by the Defendant dispenses the need of prove by the Plaintiff as held in the case of **Samuel Okudzeto Ablakwa and Another v. Jake Obetsebi Lamptey and Another [2013-2014] 1 SCGLR 16** that where a matter is admitted proof is dispensed with.

Also in the case of **In re Asere Stool; Nikoi Olai Amontai IV (Substituted by) Tafo Amon II v. Akotia Owirsika III (Substituted by) Laryea Ayiku III [2005-2006] SCGLR 637 at 656,** which was quoted with approval in Fynn v. Fynn [2013-2014] SCGLR at 727 at 738, it was held that there cannot be any better proof than an adversary admitting a fact in contention.

It is settled law that even where breach of contract is proved, it is not any breach that amounts to repudiation, but a breach of a fundamental obligation or condition of the contract, which evinces an intention not to honor the contract. As stated on page 92 of Contract Law by Elloit and Quinn Longmann 1996,

> "Where a condition is breached, the innocent party is entitled to regard the contract as repudiated, and so need not render any further performance, and can also sue for damages".

Repudiation is defined by Black's Law Dictionary 8th Edition as

> …A contracting party's words or actions that indicate an intention not to perform the contract in the future; a threatened breach of contract. A repudiation is
>
> (a) A statement by the obligor to the oblige indicating that the obligor will commit a breach that would of itself give the oblige a claim for damages for total breach… or
>
> (b) A voluntary affirmative act which renders the obligee unable or apparently unable to perform without such a breach.

In essence, a critical examination of the conduct of the Defendant clearly indicates that he unilaterally changing the terms of the contract and renting a portion of the container was a clear indication he no longer intend to fulfill his contractual obligations.

For an innocent party to be entitled to treat oneself as discharged by acts amounting to repudiation, and entitled to the benefit of the unperformed part of the contract, the complaining party must first show itself not to be in breach of material conditions of the contract. See the case of Comet Construction Company Limited v. Tema Development Corporation [1965] GLR 66

The evidence on record indicates that the Plaintiff had fulfilled his obligations under the contract by paying part of the purchase price agreed to under the contract.

The conduct of the Plaintiff by lodging a complaint against the Defendant at the Sakumono police station and the agreement for the repayment of the amount he had paid by the 15th of December, 2024 was an indication he no longer held himself bound to the contract.

The Plaintiff is seeking for an order to compel the Defendant to give the Container the Plaintiff paid for which brings up the issue of specific performance. This relief cannot be granted as the Plaintiff has already expressed that he no longer holds himself bound by the contract as same was repudiated by the Defendant.

The Plaintiff is also praying for an order to compel the Defendant to the amount of GH¢ 25,000 he paid for purchasing the container.

There is evidence on record that indicates that new terms were entered into by the parties at the Sakomono police station where the Defendant agreed to refund the money Plaintiff had already paid by the 15th of December, 2024.

A careful perusal of the evidence on record it is clear that the Plaintiff admitted during cross examination that the Defendant had paid an amount of Twenty Four Thousand Five Hundred Ghana Cedis (GH¢ 24,500.00) at the Sakumono police on the 20th of November, 2024 during cross examination.

This is what he had to say during cross examination on the 14th of August, 2025:

> Q. Do you agree with me that I have paid GH¢ 24,500 at the Sakumono police station on 20th November, 2024
>
> A. Yes I agree, the remaining amount if GH¢ 500

This admission by the Plaintiff dispenses the need for prove on this fact by the Defendant as held in the case of **Samuel Okudzeto Ablakwa and Another v. Jake Obetsebi Lamptey and Another** (supra) and **In re Asere Stool; Nikoi Olai Amontai IV (Substituted by) Tafo Amon II v. Akotia Owirsika III (Substituted by) Laryea Ayiku III** (supra).

This court therefore holds that the Defendant paid an amount of Twenty Four Thousand Five Hundred Ghana Cedis (GH¢ 24,500) on the 20th of November, 2024 which brings the remaining amount to be paid to Five Hundred Ghana Cedis (GH¢ 500.00).

Since it has already been concluded that the Defendant paid an amount of Twenty Four Thousand Five Hundred Ghana Cedis (GH¢ 24,500.00) on the 20th of November, 2024 at the Sakumono police this means the Defendant has complied with the verbal agreement reached at the police station.

The amount therefore remaining to be paid by the Defendant is Five Hundred Ghana Cedis (GH¢ 500.00) and any interest to be paid on any amount must be calculated on the GH¢ 500.00 from the 15th of December, 2024 until the date of final payment.

Interest on any amount refers to a sum of money earned or payable on top of the principal amount, often as a compensation for the use of money due to delay or breach of conduct. This is due to the fact that the Defendant defaulted to make payment of the Plaintiff's money on the agreed 15th of December, 2024. This conduct of the defendant is clearly unfair and unjust to the Plaintiff who has been deprived of the use of his money as if he had paid the said amount on the agreed date the Plaintiff would then be free to use it to earn more income, or at least, invest it in a deposit or savings account to earn a reasonable interest.

It therefore sins against equity and good conscience to permit the Defendant to have the use of the Plaintiff's money without the payment of interest after the due date. It has been stated that "the basis of an award of interest is that the defendant has kept the Plaintiff out of his money; and the defendant has had the use of it himself and so he ought to compensate the Plaintiff accordingly."

This principle was enunciated by the English Court of Appeal in the case of **Harbutt's Plasticine Ltd. v. Wayne Tank and Pump Co., Ltd. [1970] 1 ALL E.R. 225 at p. 236, C.A**.

It is therefore my considered opinion that the Plaintiff in this case is entitled to simple interest on the sum of Five Hundred Ghana Cedis (GH¢500.00) from the 15th of December, 2024 till the date of final payment.

I also award cost of Eight Hundred Ghana Cedis (GH¢ 800.00) in favour of the Plaintiff.

CONCLUSION

I hereby make the following orders;

a. The Defendant is ordered to pay an amount of Five Hundred Ghana Cedis (GH¢ 500.00) being the remaining amount Plaintiff paid for the purchase of Defendant's container.

b. The Defendant is ordered to pay simple interest on the amount of GH¢500.00 at the prevailing bank rate from the 15th of December, 2024 till the date of final payment.

c. Cost of Five Hundred Ghana Cedis (GH¢ 500.00) is awarded in favour of the Plaintiff.

SGD

H/W ADWOA BENASO ASUMADU-SAKYI

MAGISTRATE